

DISTRICT COURT, SAN MIGUEL COUNTY, STATE
OF COLORADO

305 W. Colorado Ave.
Telluride, Colorado 81435

Plaintiff,

TSG SKI AND GOLF, LLC, a Colorado Limited
Liability Corporation,

v.

Defendants,

JULIE MEEHAN FEE, an individual;
MARTINIQUE PROHASKA, an individual; and
PAUL WISOR, an individual.

Counsel for Defendants Wisor and Prohaska

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DATE FILED
July 6, 2026 3:28 PM
FILING ID: E23914449C647
CASE NUMBER: 2026CV30011

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Div.: 5

**DEFENDANTS’ JOINT REPLY IN SUPPORT OF
12(b)(5) MOTIONS TO DISMISS**

Defendants, through undersigned counsel, hereby submit their Joint Reply in Support of 12(b)(5) Motions to Dismiss (“Reply”), in reply to Plaintiff’s Combined Response to Defendants’ Motions to Dismiss (“Response”), filed June 26, 2026, as follows:

I. INTRODUCTION

Plaintiff’s Response fails to cure the primary deficiency identified in Defendants’ Motions – that Plaintiff has not alleged any interfering act by Defendants. Instead, the Response merely reiterates that Defendants used their official positions to include governmental benefits in their offer to purchase the ski resort – conduct that is not factually and legally sufficient to support the allegation that Defendants prolonged the ski patrol strike¹ or conspired to do so. The Response continues to conflate an ability to negotiate the conclusion of the ski patrol strike with actual interference that prolonged the strike. Such logic is akin to arguing that a mediator who believes she can settle a case is responsible for prolonging the litigation. Plaintiff’s theory depends on a series of unsupported logical leaps rather than well-pled factual allegations. *See Defend Colorado v. Polis*, 482 P.3d 531, 541, ¶ 42 (Colo. App. 2021) (dismissing complaint where “none of its factual allegations explain *how* the Governor improperly influenced the Commission. Rather, Defend Colorado points to media reports of the Governor’s public statements. The district court

¹ The Response argues that in addition to prolonging the ski patrol strike, Defendants used their public positions to halt Town action on water prices, flight development, and employee housing. Response, p. 2. However, as the claim related to the water agreement was dismissed, and no claims are predicated on flight development or employee housing, those issues are not addressed in this Reply. Nor is there any injury alleged other than related to the ski patrol strike.

concluded, and we agree, that ‘[n]othing in the complaint suggests that the Governor influenced or didn't influence’ the Commission in its decision not to hold the hearing and issue the declaratory order requested by Defendant Colorado, ‘just that the Governor’s actions happened contemporaneously.’”) (italics in original).

II. ARGUMENT

A. Facts raised in the Response for the first time cannot be considered.

Numerous facts are alleged in the Response that are not alleged in the First Amended Complaint (“Complaint”). These facts cannot be considered. *Harrington v. Neutron Holdings, Inc.*, 564 P.3d 309, 316, n. 4 (Colo. App. 2024) (“Because our review is limited to the allegations in the complaint, we may not consider allegations made for the first time in response to the motion to dismiss.”) (citations omitted).

The Response cites the Town’s investigative summary in its Response. *See* Response, p. 2. However, the investigative summary postdates the Complaint, having been recently issued on June 8, 2026, and is not referenced in the Complaint. The Court’s task is to evaluate the sufficiency of the Complaint itself, not materials created after its filing. Nor can the Court take judicial notice of any facts “subject to reasonable dispute” in the investigative summary. *See* C.R.E. 201(b). To the extent the investigative report is considered, it identifies no conduct demonstrating Defendants prolonged the ski patrol strike, possessed an ability to do so, or exercised any such ability. To the contrary, the report found the ski patrol strike started because Telluride Professional Ski Patrol Association (“TPSPA”) voted to strike on December 23, 2025, after its contract had expired and Plaintiff failed to reach a new labor agreement with TPSPA. *See* Executive Summary, p. 2, incorporated into p. 10 of the Response. The report also found the ski patrol strike ended as a

result of TPSPA voting to accept Plaintiff's latest offer on January 8, 2026 – *after* Plaintiff had already declined to accept the alleged purchase offer from Defendants. *See* Executive Summary, p. 7, incorporated into p. 10 of the Response; Complaint, ¶¶ 19-23 (Fee and Prohaska met with Horning on December 29, 2025, who did not accept the offer). Moreover, the Response states, "Telski does not, at present, take a position on the accuracy or completeness of this investigative report..." Response, p. 10. Plaintiff's reliance on the investigative report is difficult to reconcile with its express disclaimer regarding accuracy or completeness.

The Response references a CORA request from Plaintiff to the Town of Mountain Village. However, the CORA request is not referenced in the Complaint and therefore also cannot be considered.

The Response alleges Prohaska is a member of ski patrol, which also cannot be considered, as it is not alleged in the Complaint.

The Response also alleges for the first time and in conclusory fashion that Defendants "were at the epicenter of escalating tension between the Towns and Telski, as has been widely reported in the media," which cannot be considered either since it is not in the Complaint and is also a wholly conclusory allegation.

B. Claim 1: Tortious interference with prospective business relations claim remains deficient (ski patrol strike).

1. Plaintiff has prospective business relationships with its customers.

Defendants agree with Plaintiff that it has prospective business relationships with its customers who intended to buy day passes during the strike (season passes already purchased would not be impacted and are not prospective). However, dismissal remains warranted as Plaintiff has not plausibly alleged the remaining elements of a cognizable intentional interference claim.

2. *No improper and intentional interference alleged.*

The Response argues the factual support for an interfering act is “Defendants’ own words and representations, as set forth in the Complaint.” Response, p. 5. However, as argued in Defendants’ Motions, at most, Defendants’ statements as alleged in the Complaint merely support an inclusion of governmental benefits in the offer to purchase. There are no statements plausibly alleging Defendants prolonged the ski patrol strike made by the Defendants cited in the Complaint or otherwise.

The Response argues the Court need not consider the seven factors listed in Defendants’ Motions to determine whether interference is improper because those factors apply only to business competitors. It is unclear why Plaintiff advances this position, as the relevant authority expressly states the opposite – the factors do *not* apply when the parties are business competitors. *Harris Grp., Inc. v. Robinson*, 209 P.3d 1188, 1196 (Colo. App. 2009) (“However, when the parties are business competitors, and the conduct in question involves intentional interference with prospective contractual relations or contracts terminable at will, the general factors outlined by section 767 do not apply.”). Plaintiff’s case, *W.O. Brisben Companies, Inc.*, does not support its position. See *W.O. Brisben Companies, Inc. v. Krystkowiak*, 66 P.3d 133, 136 (Colo. App. 2002) (“Ordinarily, whether a person acts ‘improperly’ in interfering with a contract depends upon consideration of the following factors: ...”).

Plaintiff’s argument that there is no legitimate reason a governmental entity would provide consideration for a private transaction is incorrect; particularly where, as here, the Towns stood to benefit from the transaction by, for example, incentivizing economic growth, mitigating economic harm caused by the strike, stabilizing the community, and resolving the alleged “tensions between

the Towns and Telski.” *See* Response, p. 3. The mere inclusion of governmental benefits in a private transaction is not inherently improper or unprecedented.

Plaintiff additionally argues Defendants used “threats of regulatory obstruction and withholding municipal approvals[] to force the sale of a private business into an investment fund they controlled.” Response, p. 7. However, the allegations in the Complaint do not plausibly support any threat or withholding of municipal approvals. Plaintiff identifies no statement, act, or other factual allegation supporting its conclusion that Defendants threatened to withhold approvals, delayed governmental action, or otherwise exercised municipal authority to pressure Plaintiff into a sale. Although the issue is not presently before the Court, Defendants note they are unaware of any evidence supporting such an allegation, and Plaintiff’s failure to identify any suggests none exists. To the extent Plaintiff predicates its claims on allegations of threats or withheld approvals, in the absence of actual factual support for such an allegation, attorneys’ fees pursuant to C.R.S. § 13-17-102 would be appropriate.

Plaintiff next argues “the timeline itself creates a highly plausible inference of intentionality.” Response, p. 7. Plaintiff appears to argue that because Fee and Prohaska contacted Horning on December 26, 2025, the day before the strike, to discuss a resolution, they therefore caused the strike. That conclusion again requires multiple logical leaps unsupported by factual allegations. *See Defend Colorado*, 482 P.3d at 541, ¶ 42 (dismissing complaint where alleging “that the Governor’s actions happened contemporaneously [] is not enough to state a claim”). The plausible explanation – and indeed the one acknowledged in the Complaint – is simply that the

parties were aware the strike was “pending.” Complaint, ¶ 12².

Examples of improper and intentional interference sufficient to withstand dismissal include “physical violence, fraud, civil suits and criminal prosecutions.” *Amoco Oil Co. v. Ervin*, 908 P.2d 493, 502 (Colo. 1995). “However, an actor may use persuasion, and he or she may exert limited economic pressure without engaging in wrongful means.” *Id.* (citations and quotations omitted). There are no allegations in the Complaint that Defendants employed physical violence, fraud, civil litigation, criminal proceedings, or any other wrongful means sufficient to constitute improper and intentional interference.

3. *Causation is not sufficiently alleged.*

This element suffers from the same deficiency identified above. Without an alleged interfering act, the Court cannot plausibly infer the act caused the strike. Moreover, the Response confirms the speculative nature of causation as follows:

“The First Amended Complaint alleges sufficient facts to establish a credible claim that the Defendants engaged in such wrongful acts – facts which consist largely of statements by the Defendants themselves. **It is important to note that Plaintiff does not allege that Defendants’ statements were necessarily truthful, complete or internally consistent...**” *See* Response, p. 8 (bold formatting added).

As Plaintiff apparently concedes it does not know whether Defendants possessed the ability to influence the strike, it has not plausibly alleged Defendants prolonged – or were even capable of prolonging – the strike. Nor is it clear which specific statements Plaintiff contends may be untruthful or inconsistent, as the Response identifies none. The statements referenced in

² The implausibility of Plaintiff’s argument regarding the timeline is further pronounced by the fact, that on December 23, 2025, before Fee and Prohaska contacted Horning, the TPSPA widely publicly announced their plan to strike, with the work stoppage to begin on December 27, 2025.

Defendants' Motions are taken from Exhibit 2³ to the Complaint and relate to the negotiation strategy for resolving the strike. Plaintiff relies on those and similar statements to support its argument that Defendants had the ability to influence the strike and therefore prolonged it. However, in doing so, Plaintiff attached an exhibit to its Complaint that fundamentally contradicts its theory that Defendants threatened to prolong the strike.

Plaintiff argues that contradictions between the Complaint and its exhibits may be disregarded only where they “deal with contract disputes where the contract was attached to the complaint.” Response, p. 9. However, the principle is not limited to contract disputes. Courts need not accept allegations as true that are contradicted by any “document[] properly before the court.” *Pena v. Am. Fam. Mut. Ins. Co.*, 463 P.3d 879, 882, ¶ 15 (Colo. App. 2018) (citations omitted). As the exhibits attached to the Complaint are properly before the Court for purposes of evaluating dismissal under C.R.C.P. 12(b)(5), “their legal effect is determined by their contents rather than by allegations in the complaint.” *Id.* Here, Plaintiff’s claims are premised on the alleged threat of and prolongation of the ski patrol strike. Yet the factual allegations in the Complaint and exhibits thereto reflect only discussions concerning a strategy for negotiating an end to the strike. When taken as a whole, there is simply no basis to suggest Defendants intended to take action to prolong the strike in the event Plaintiff did not agree to the sale of the ski area. Accordingly, Plaintiff’s conclusory allegation that Defendants prolonged the strike need not be accepted as true. *Id.* (noting

³ Paragraphs 41 through 52 of the Complaint and the transcript contained in Exhibit 2 are subject to Ms. Fee’s contemporaneously filed motion to strike pursuant to C.R.C.P. 12(f). Nonetheless, even if this material remains in the lawsuit, it is insufficient to overcome the plausibility pleading deficiencies as set forth in Defendants’ instant Motions pursuant to C.R.C.P. 12(b)(5). Ms. Fee addresses these allegations in this Motion without waiving her arguments they should be stricken from the Complaint.

that a court is not required to accept “legal conclusions or factual allegations at variance with the express terms of those documents”). Plaintiff alleges the purported threat was made during a meeting that was recorded and transcribed in Exhibit 2 to the Complaint, and also in the purchase offer attached as Exhibit 1 to the Complaint. *See* Complaint ¶¶ 42-46 and 51-52. The Court can readily determine from the content of these exhibits whether the statements amount to the alleged threat or convey an ability to prolong the strike.

4. *Damages are not plausibly alleged.*

Plaintiff argues that the contradiction between the Complaint and Exhibit 2’s statement that Mr. Horning was not financially impacted is reconciled by reference to Mr. Horning’s personal finances and not the finances of Plaintiff. However, Plaintiff is a Colorado Limited Liability Company owned by Mr. Horning. Complaint, ¶¶ 3 and 12. It is not plausible that “millions of lost dollars” incurred by an LLC would leave its owner entirely unaffected financially.

C. Claim 2: Civil conspiracy claim remains deficient.

1. *No allegations supporting an agreement.*

The Response concedes Defendants merely coordinated the offer of purchase and identifies no allegations plausibly alleging an agreement to prolong the strike. To survive dismissal, the Complaint must allege an agreement to do an unlawful act. An agreement to undertake a lawful act – such as coordinating the attempted purchase or seeking to end the ski patrol strike – cannot sustain a conspiracy claim. *More v. Johnson*, 193 Colo. 489, 494 (1977) (“silent knowledge of an unlawful act is insufficient to establish the requisite agreement”); *id.* (“proof of an agreement must be presented; it will not be inferred”).

2. *No unlawful act is plausibly alleged.*

The Response argues it can satisfy the “unlawful act” element by alleging a breach of fiduciary duty pursuant to C.R.S. § 24-18-103, even though the statute creates no private right of action. As argued in Defendants’ Motions, a conspiracy claim is a derivative claim requiring a viable underlying claim. Plaintiff cites *Double Oak Const., L.L.C.* to support its position; however, this case supports the opposite. *Double Oak Const., L.L.C. v. Cornerstone Dev. Int’l, L.L.C.*, 97 P.3d 140, 146 (Colo. App. 2003) (“If the acts alleged to constitute the underlying wrong provide no cause of action, then there is no cause of action for the conspiracy itself.”). As there is no private right of action pursuant to C.R.S. § 24-18-103, it cannot form the basis of Plaintiff’s conspiracy claim. Nor can a breach of fiduciary duty support Plaintiff’s conspiracy claim as no such claim has been asserted in this matter. *Smith v. Idaho Springs Police Dep’t*, No. 22CA1190, 2023 WL 12052093, at *11 (Colo. App. June 29, 2023) (“Because we have upheld the dismissal of all of Smith’s claims that he addresses on appeal, ... the civil conspiracy claim is a derivative claim lacking a source. Thus, the district court did not err by dismissing the claim.”).

Even if Plaintiff had plausibly alleged Defendants breached their fiduciary duties, which it has not, conflict of interest concerns surrounding Defendants’ participation in the offer to purchase do not establish Defendants prolonged the ski patrol strike or engaged in a conspiracy.

3. *Paul Wisor’s participation is not plausibly alleged.*

Lastly, the Response argues that Wisor’s participation is plausibly alleged because he “secretly” drafted a nondisclosure agreement to accompany the purchase offer. Response, p. 6. But the very purpose of a nondisclosure agreement is to preserve confidentiality. The Complaint alleges no facts suggesting the agreement was improper, unlawful, or otherwise indicative of participation in prolonging the strike. Moreover, because Wisor is alleged to have drafted a

document related to a proposed transaction where the Town is a third-party obligor, communications regarding that document would not be public and subject to attorney-client privilege. The mere fact that the nondisclosure agreement was not publicized does not render it unlawful or plausibly connect it to prolonging the ski patrol strike.

Finally, the Response argues that Wisor “maintained administrative control” over the terms listed as additional consideration, such as water system operation costs and building permits. Yet Plaintiff has not asserted claims predicated on water system operation costs or building permits. And even if Wisor did control those operations, that fact does not plausibly allege that he prolonged the ski patrol strike or conspired to do the same.

WHEREFORE, for the foregoing reasons, as well as based on the arguments and authorities contained in their Motions to Dismiss the Complaint, stated herein, Defendants respectfully request the Court grant their Motions to Dismiss, dismiss the Complaint and its claims against them in their entirety with prejudice, and award their attorneys’ fees and costs as required by statute, and for all other and further relief as this Court deems just and appropriate.

Respectfully submitted,

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Hall & Evans, LLC

By: /s/ Andrew D. Ringel (by consent)
Andrew D. Ringel, #24762
Counsel for Defendant Fee

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of July, 2026, a true and correct copy of the foregoing **DEFENDANTS' JOINT REPLY IN SUPPORT OF 12(b)(5) MOTIONS TO DISMISS** was electronically filed with the Court and served upon all counsel of record via the Colorado Courts E-Filing system.

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